

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julian Phillips	Team: Squad #06	CCRB Case #: 201802531	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/30/2018 6:51 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/30/2019	Precinct: 100		
Date/Time CV Reported Sat, 03/31/2018 12:39 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 03/31/2018 12:39 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Bryan Martini	27069	945962	100 PCT
2. POM Casey Shamloo	04150	961280	100 PCT
3. SGT Juan Lordi	4327	932920	100 PCT
4. POM Michael Goggins	24788	947758	100 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Casey Shamloo	Abuse: Police Officer Casey Shamloo entered § 87(2)(b) in Queens.	A . Exonerated
B . POM Bryan Martini	Abuse: Police Officer Bryan Martini entered § 87(2)(b) in Queens.	B . Exonerated
C . POM Bryan Martini	Discourtesy: Police Officer Bryan Martini spoke discourteously to § 87(2)(b)	C . Exonerated
D . POM Bryan Martini	Force: Police Officer Bryan Martini used physical force against § 87(2)(b)	D . Exonerated
E . POM Bryan Martini	Abuse: Police Officer Bryan Martini frisked § 87(2)(b)	E . Unsubstantiated
F . POM Bryan Martini	Abuse: Police Officer Bryan Martini searched § 87(2)(b)	F . Unsubstantiated
G . POM Michael Goggins	Discourtesy: Police Officer Michael Goggins spoke discourteously to § 87(2)(b)	G . Unsubstantiated
H . SGT Juan Lordi	Abuse: Sergeant Juan Lordi supervised the detainment of § 87(2)(b)	H . Exonerated

Case Summary

On March 31, 2018, § 87(2)(b) filed this complaint with the CCRB via the on-line website.

On March 30, 2018 at approximately 6:51 p.m., Police Officer Bryan Martini and Police Officer Casey Shamloo, both of the 100th Precinct, entered § 87(2)(b)'s residence, located at § 87(2)(b) in Queens after being assigned to respond to a family dispute at that location (**Allegations A and B: Abuse of Authority, exonerated**). As he was entering the residence, PO Martini said to § 87(2)(b) "I'll fucking just come in your house" (**Allegation C: Discourtesy, exonerated**). § 87(2)(b) yelled at the officers, and PO Martini placed his own hand on § 87(2)(b)'s shoulder and pushed him backwards (**Allegation D: Force, exonerated**). The officers handcuffed § 87(2)(b). PO Martini frisked § 87(2)(b) and removed his identity card from his wallet (**Allegations E and F: Abuse of Authority, unsubstantiated**). PO Martini and PO Shamloo escorted § 87(2)(b) outside, where they encountered Sergeant Juan Lordi and Police Officer Michael Goggins, also of the 100th Precinct. PO Goggins engaged in a brief conversation with § 87(2)(b) and allegedly said to him, "Fuck off" (**Allegation G: Discourtesy, unsubstantiated**). Under the supervision of Sgt. Lordi, the officers placed § 87(2)(b) inside a police vehicle for approximately 20 minutes while they interviewed § 87(2)(b)'s wife (**Allegation H: Abuse of Authority, exonerated**). § 87(2)(b) was released without being processed for arrest or issued a summons.

There was mobile phone video footage of a one portion of this incident (01 Board Review) and an audio recording of a 911 call capturing a second portion of the incident (02 Board Review).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Casey Shamloo entered § 87(2)(b) in Queens.

In his sworn statement to the CCRB (03 Board Review), § 87(2)(b) reported that, on the date of the incident, he had a verbal and physical altercation with his wife, § 87(2)(b) during which § 87(2)(b) struck him in the face and threatened him with a knife. § 87(2)(b) called 911 during the incident, allowing the 911 dispatcher to hear approximately one minute of § 87(2)(b) yelling and § 87(2)(b) sobbing. PO Martini and PO Shamloo responded to § 87(2)(b)'s address. Upon observing the officers, § 87(2)(b) exited his residence, and informed the officers that he had called 911 but no longer required police assistance. § 87(2)(b) then reentered his residence. PO Shamloo walked behind § 87(2)(b) and immediately stepped one foot over the threshold of the door, apparently to prevent § 87(2)(b) from closing it.

In his statement to the CCRB (04 Board Review), PO Shamloo reported that the 911 dispatcher informed him and PO Martini via radio that a male and female individual were audibly yelling at § 87(2)(b). PO Shamloo did not recall if the 911 dispatcher provided any other information about the original 911 call. Upon first arriving and speaking to § 87(2)(b) outside of his residence, PO Shamloo observed that § 87(2)(b) appeared to be upset and had a visible scratch on his neck. § 87(2)(b) informed the officers that the police were not needed, and the officers replied that they wished to speak to § 87(2)(b). § 87(2)(b) verbally agreed to this and walked into his residence, followed by PO Shamloo. PO Shamloo immediately stepped one foot over the

threshold of the door to prevent § 87(2)(b) from closing it. PO Shamloo stated that he stepped his foot over the door because he was concerned that a civilian inside the residence could be at risk of harm.

PO Martini's statement to the CCRB (05 Board Review) § 87(2)(g). PO Martini, however, denied seeing any visible injuries on § 87(2)(b) upon first approaching him, and further characterized his demeanor as calm during the initial conversation outside the residence.

§ 87(2)(f)

The audio recording of § 87(2)(b)'s initial 911 call (06 Board Review) indicates that the 911 dispatcher heard § 87(2)(b) (who is audibly upset) and § 87(2)(b) (who is audibly sobbing) arguing for one minute. During this recording, § 87(2)(b) states, "I didn't touch you," and § 87(2)(b) replies, "Yes, you did." § 87(2)(b) then states, "You hit me," and then repeatedly states, "Don't touch me." The audio recording of the police radio communications associated with the call (07 Board Review) records the 911 dispatcher informing PO Martini and PO Shamloo of a family dispute § 87(2)(b). In describing the initial 911 call to the officers, the dispatcher incorrectly states that § 87(2)(b) (rather than § 87(2)(b) had been audible stating "don't touch me."



Initial 911 call.mp4



Initial radio dispatch.mp4

A video of the incident filmed by § 87(2)(b) (01 Board Review) opens with § 87(2)(b) pointing the camera lens at his own face and narrating that he has asked the police to leave and wishes to close his door. § 87(2)(b) then rotates the camera, and the frame captures PO Martini and PO Shamloo standing directly outside a partially open door. PO Shamloo's right foot is visibly set across the threshold of the door, apparently obstructing it from being closed.



Shamloo Entry.mp4

Courts have repeatedly held, as in Brigham City v. Stuart, 547 U.S. 398 (2006) (09 Board Review) that officers may enter premises absent a warrant if they possess an "objectively reasonable basis for believing that an occupant was seriously injured or imminently threatened with such injury." Courts have further held, in People v. Paez, 211 A.D.2d 593 (1995) (10 Board Review), that officers who receive a report of a domestic dispute may enter and move about premises as necessary to inquire about the "safety" of civilians inside and "determine if police intervention [is] needed."

§ 87(2)(g)

. It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation (B) Abuse of Authority: Police Officer Bryan Martini entered § 87(2)(b) in Queens.

In his sworn statement to the CCRB, § 87(2)(b) reported that, after PO Shamloo placed his foot over the threshold of the door, the officers requested to speak to § 87(2)(b). § 87(2)(b) called out to § 87(2)(b) who approached the door from a bedroom (where she would not have previously been visible to the officers). The officers asked § 87(2)(b) if she was “okay,” and she replied that she was. § 87(2)(b) then began to push the door closed. PO Martini pressed the door fully open and walked into the residence.

In his statement to the CCRB, PO Martini reported that, immediately after PO Shamloo placed his foot over the threshold of the door, § 87(2)(b) became upset and began yelling. § 87(2)(b) approached the door upon being summoned by § 87(2)(b). § 87(2)(b) was visibly trembling and sobbing, indicating to PO Martini that she was frightened. § 87(2)(b) continued to yell at both the officers and at § 87(2)(b) ordering the officers to leave and asking § 87(2)(b) to encourage the officers to leave. Based on § 87(2)(b)'s demeanor, PO Martini was suspicious that § 87(2)(b) may have physically assaulted § 87(2)(b) prior to the officers' arrival. PO Martini determined that the situation required further investigation. § 87(2)(b) attempted to close the door, possibly striking PO Shamloo's foot. PO Martini pushed the door fully open and walked into the residence.

§ 87(2)(g). PO Shamloo reported that, when § 87(2)(b) approached the door, he was unable to see her, but heard her audibly sobbing for approximately 30 seconds before PO Martini entered the residence.

The video footage recorded by § 87(2)(b) shows that, upon approaching the door, § 87(2)(b) is visibly and audibly sobbing. PO Martini asks § 87(2)(b) if she is okay, and she nods her head to signify assent. PO Martini then asks § 87(2)(b) if she needs the police, and she shakes her head to signify dissent. Over the course of 35 seconds, the officers repeatedly direct § 87(2)(b) to approach them. § 87(2)(b) does not move forward, but replies “I can't.” PO Martini directs § 87(2)(b) to step away from the door, but he does not comply. § 87(2)(b) speaks to § 87(2)(b) and she begins to sob with increased volume. Approximately one minute and 30 seconds after § 87(2)(b) first approaches the door, PO Martini is visible pushing the door fully ajar and walking into the residence.



Runup to Martini Entry.mp4

As cited in the analysis of Allegation A, above, courts have long held that it is reasonable for officers to enter premises absent a warrant if they reasonably believe that there is an emergency situation inside. In People v. Paez, also cited above, the court specifically held that officers who had already entered a residence could move more deeply into the premises in order to interview an individual who they believed may have been the victim of domestic violence.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **exonerated**.

Allegation (C) Discourtesy: Police Officer Bryan Martini spoke discourteously to § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) stated that, as PO Martini was stepping over the threshold of the door, he said “I’m going to come into your fucking house.”

In his statement to the CCRB, PO Martini stated that, immediately after he entered the residence, § 87(2)(b) said, “You’re in my fucking house.” PO Martini replied, “Yeah, I’m in your fucking house.” When asked why he had used the word “fuck,” PO Martini stated that the word had “slipped out” due to the “heat of the moment.”

The video footage recorded by § 87(2)(b) records that, as PO Martini steps across the threshold of the door, he states, “I’ll fucking just come in your house.” This is the first use of profanity in the conversation between § 87(2)(b) and the officers that is documented on video. Although § 87(2)(b) subsequently used profanity in speaking to the officers and § 87(2)(b) he had not used profanity up to this point.



Martini Discourtesy.mp4

Procedure 203-09 of the NYPD Patrol Guide (08 Board Review) requires officers to be “courteous and respectful” in interacting with members of the public. The NYPD has also held, as in Disciplinary Case no. 79627/04 (30 Board Review), that “when a police officer uses an otherwise impolite word during a stressful... encounter where that officer is attempting to maintain control of the situation, the police officer’s verbal slip does not rise to the level of actionable misconduct.”

§ 87(2)(g)

. It is therefore recommended that **Allegation C** be closed as **exonerated**.

Allegation (D) Force: Police Officer Bryan Martini used physical force against § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that, after PO Martini entered the residence, he repeatedly ordered the officers to leave, and called 911 to complain about the situation. PO Martini reached out, placed his hand on § 87(2)(b)'s shoulder, and pushed. § 87(2)(b) did not stumble, fall, or bump into any objects as a result of being pushed.

§ 87(2)(f)

During this time, § 87(2)(b) yelled at both the officers and § 87(2)(b) § 87(2)(b) who was filming the scene, repeatedly approached PO Martini and yelled at him from a distance of approximately three inches. Because of § 87(2)(b)'s proximity, PO Martini could not see one of § 87(2)(b)'s hands, which was in the vicinity of his waistband area. In order to create distance between himself and § 87(2)(b) PO Martini placed both of his hands on § 87(2)(b)'s torso and pushed, causing him to move backwards and stumble. PO Martini then handcuffed § 87(2)(b)

§ 87(2)(f)

During this time, § 87(2)(b) called 911 and yelled at the officers. § 87(2)(b) stood approximately two inches in front of PO Shamloo and PO Martini while yelling for them to exit the residence. PO Shamloo ordered § 87(2)(b) to step back, and he verbally refused to comply. PO Shamloo did not recall PO Martini physically pushing § 87(2)(b) back.

The video footage provided by § 87(2)(b) shows that, for approximately six minutes and 20 seconds after PO Martini enters the residence, § 87(2)(b) yells at and about the officers. PO Martini and PO Shamloo stand side-by-side facing § 87(2)(b) while § 87(2)(b) stands to the side of PO Shamloo, who is speaking to her. § 87(2)(b)

§ 87(2)(f)

§ 87(2)(b) stands a close distance from PO Martini and PO Shamloo (at one point holding the camera lens directly in front of PO Shamloo's face). After approximately six minutes, § 87(2)(b) begins to yell at § 87(2)(b) ordering her to exit the residence. § 87(2)(b) who appears extremely agitated, is standing several feet from § 87(2)(b) at this time. PO Martini orders § 87(2)(b) to move back and to stop screaming. § 87(2)(b) does not comply. PO

Martini steps forward, places both hands on § 87(2)(b)'s chest, and quickly pushes him back. A few seconds later, PO Martini is visible removing his handcuffs from his waistband.



Run up to Martini Push.mp4

No Threat, Resistance, or Injury Report was prepared pursuant to this incident.

Procedure 221-01 of the NYPD Patrol Guide (11 Board Review) states that “[f]orce may be used when it is reasonable to ensure the safety of a member of the service or a third person.” The procedure continues to state that any force used must be “reasonable under the circumstances,” and specifies that the reasonableness of force should be assessed, in part, by reference to the “nature and severity of the crime/circumstances,” “[a]ctions taken by the subject,” “[d]uration of the action,” “[i]mmediacy of the perceived threat or harm,” and “[s]ubject’s violent history, if known.”

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **exonerated**.

Allegation (E) Abuse of Authority: Police Officer Bryan Martini frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Bryan Martini searched § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that, immediately after PO Martini pushed him back, both PO Martini and PO Shamloo handcuffed him. PO Shamloo then frisked § 87(2)(b)'s legs, pockets, waistband, and chest. PO Shamloo further removed § 87(2)(b)'s wallet from his pocket and reviewed the wallet's contents.

In his statement to the CCRB, PO Shamloo reported that, after he and PO Martini handcuffed § 87(2)(b) he frisked § 87(2)(b)'s front pants pockets. PO Shamloo stated that he frisked § 87(2)(b)'s front pants pockets because it is procedure to frisk the pockets of every individual who is placed in handcuffs. PO Shamloo stated that, although he assessed that § 87(2)(b)'s actions in yelling at the officers and § 87(2)(b) constituted Obstructing Governmental Administration and believed that the officers “could have” arrested § 87(2)(b) for this crime, he did not ever consider § 87(2)(b) to be under arrest. PO Shamloo further stated that PO Martini frisked § 87(2)(b)'s front and rear pants pockets. PO Shamloo did not recall searching § 87(2)(b)'s pockets. Although PO Shamloo recalled handling § 87(2)(b)'s identification card, he did not recall where he obtained this card.

In his statement to the CCRB, PO Martini reported that he assessed § 87(2)(b)'s actions in yelling at the officers and at § 87(2)(b) to constitute Harassment, Disorderly Conduct, and Obstructing Governmental Administration. PO Martini decided to place § 87(2)(b) under arrest for these offenses. After handcuffing § 87(2)(b), PO Martini and PO Shamloo frisked § 87(2)(b) and searched his pockets because this is protocol for handling an individual who is under arrest.

PO Martini and PO Shamloo prepared extensive documentation pursuant to this incident: detailed memo book entries (12 Board Review; 13 Board Review), a Domestic Incident Report (14 Board Review), a Complaint Report (15 Board Review), and a Stop Report (16 Board Review). § 87(2)(g)

§ 87(2)(b). PO Martini's memo book entry states that § 87(2)(b) was "stopped/handcuffed... due to aggressiveness/possible assault on female at scene" and that he was subsequently "released – no c/v, crime committed." PO Shamloo's memo book entry states that § 87(2)(b) was "stopped by PO Martini." The Domestic Incident Report prepared by PO Shamloo cites Harassment as the only offense that § 87(2)(b) committed, and states that § 87(2)(b) was not arrested. The Complaint Report prepared by PO Shamloo contains an identical narrative to the Domestic Incident Report, and again does not cite Obstructing Governmental Administration as an offense committed by § 87(2)(b). The Stop Report prepared by PO Martini states that § 87(2)(b) was "placed in handcuffs to allow responding officers to investigate" The Stop Report further notes that § 87(2)(b) was "frisked for officer safety" due to the officers' suspicion that he had assaulted § 87(2)(b) (The Stop Report indicates that § 87(2)(b) was not searched; when asked about this during by the CCRB, PO Martini stated that this was a clerical error.)

In their statements to the CCRB, PO Goggins (17 Board Review) and Sgt. Lordi (18 Board Review) both stated that they were never informed that § 87(2)(b) had committed Obstructing Governmental Administration. Sgt. Lordi stated that, upon his arrival, PO Martini asked if § 87(2)(b)'s conduct warranted an arrest, but did not state that he considered § 87(2)(b) to be under arrest at that point. Sgt. Lordi informed PO Martini that, based on the actions that PO Martini described, the officers did not possess probable cause to arrest.

The audio recording of § 87(2)(b)'s second 911 call (02 Board Review) captures the handcuffing, frisk, and search of § 87(2)(b). The recording captures an officer (identified by the investigation as PO Martini) asking § 87(2)(b) "Anything on you that's sharp?," informing § 87(2)(b) "We're searching you," and asking § 87(2)(b) "ID in your wallet?" The recording also captures § 87(2)(b) asking, "Am I under arrest," and PO Martini replying, "Yes."



Search and Frisk audio.mp4

Courts have held, as in People v. Reid, 24 N.Y.3d 615 (2014) (20 Board Review), that for the search of a person to be deemed incident to his or her arrest, “a search must be incident to an actual arrest, not just to probable cause that might have led to an arrest, but did not.” In People v. Reid, the court held that the search of a defendant was not incident to his arrest based on an officer’s testimony that, while he had possessed probable cause to arrest the defendant prior to searching him, the officer did not in fact intend to effect an arrest.

§ 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegations E and F** be closed as **unsubstantiated**.

Allegation (G) Discourtesy: Police Officer Michael Goggins spoke discourteously to § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that, after he was frisked and searched, PO Martini and PO Shamloo escorted him out of his residence, where they encountered two officers, identified by the investigation as Sgt. Lordi and PO Goggins (who was subsequently promoted to the rank of Sergeant.) PO Goggins said, “Hey, buddy,” § 87(2)(b) responded, “I’m not your buddy,” and PO Goggins replied, “Fuck off.”

In his statement to the CCRB, PO Goggins stated that, upon arriving at § 87(2)(b), he observed PO Martini, PO Shamloo, and § 87(2)(b) walking out of the residence. PO Goggins stated that he then approached § 87(2)(b) and directed him where to stand, but did not recall any other conversation. When asked, PO Goggins stated that he habitually referred to civilians as “buddy,” but did not recall any conversation about his use of the word “buddy” with § 87(2)(b) PO Goggins denied saying, “Fuck off” to § 87(2)(b)

Sgt. Lordi, PO Martini, and PO Shamloo were consistent in stating that they did not recall PO Goggins speaking to § 87(2)(b) and specifically denied hearing him say, “Fuck off.”

There was no video footage of this portion of the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Allegation (H) Abuse of Authority: Sergeant Juan Lordi supervised the detainment of § 87(2)(b)

§ 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that, after PO Martini and PO Shamloo escorted him out of his residence, the officers placed him in a marked police vehicle, where he remained for approximately 30 minutes. During this time, § 87(2)(b) overheard unidentified officers discussing whether he would be charged with Harassment. § 87(2)(b) subsequently learned that officers had interviewed § 87(2)(b) and completed paperwork during the period he spent inside the vehicle.

In his statement to the CCRB, Sgt. Lordi reported that, upon his arrival at § 87(2)(b), § 87(2)(b) had already been placed inside a marked police vehicle. Sgt. Lordi spoke briefly to PO Martini and PO Shamloo and determined that § 87(2)(b) would be released without being processed for arrest. Sgt. Lordi then spoke to § 87(2)(b) who stated that she wished to leave the scene. § 87(2)(b) collected her belongings and drove away. The officers immediately released § 87(2)(b).

In their statements to the CCRB, PO Goggins, PO Martini, and PO Shamloo were consistent in reporting that, while § 87(2)(b) was inside the vehicle, Sgt. Lordi discussed the incident with PO Martini and PO Shamloo. PO Martini further stated that § 87(2)(b) remained inside the vehicle until § 87(2)(b) had completed gathering her belongings and had left the scene.

PO Goggins's memo book for the date of the incident (21 Board Review) indicates that he and Sgt. Lordi arrived at § 87(2)(b) at 7:32 p.m. and left the scene at 8:01 p.m. Sgt. Lordi's memo book for the date of the incident (22 Board Review) does not note the time that he arrived at § 87(2)(b), but indicates that he left the scene at 8:01 p.m. PO Martini's memo book for the date of the incident notes that § 87(2)(b) was handcuffed at 7:15 p.m. and released at 8:00 p.m. PO Shamloo's memo book for the date of incident indicates that § 87(2)(b) was first detained at 7:15 p.m., and the officers left the scene to prepare paperwork at 8:00 p.m.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (23 Board Review).
- PO Goggins has been a member of service for ten years and has been a subject in two CCRB complaints and three allegations, none of which was substantiated (24 Board Review).
 - In CCRB case 201202585, PO Goggins was alleged to have used the word “fuck” in ordering a civilian to exit his vehicle. This allegation was closed as unsubstantiated.

- Sgt. Lordi has been a member of service for 15 years and has been a subject in one CCRB complaint and four allegations, none of which was substantiated (25 Board Review). § 87(2)(g)
- PO Martini has been a member of service for ten years and has been a subject in two CCRB complaints and two allegations, none of which was substantiated (26 Board Review). § 87(2)(g)
- PO Shamloo has been a member of service for ten years and has been a subject in one CCRB complaint and one allegation, which was not substantiated (27 Board Review). § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of June 15, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (28 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date